

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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VERNA SMITH,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOSEPH ARMENIO, Shield No. 5807, SERGEANT MENA KILADA, POLICE OFFICER NICHOLAS KOWATCH, Shield 9969, SERGEANT RYAN DWYER, POLICE OFFICER TREVOR BARTON, and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 4, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER JOSEPH ARMENIO, Shield No. 5807, PSA 3 Precinct, 25 Central Ave, Brooklyn, NY 11206

SERGEANT MENA KILADA, PSA 3 Precinct, 25 Central Ave, Brooklyn, NY 11206
POLICE OFFICER NICHOLAS KOWATCH, Shield 9969, PSA 3 Precinct, 25 Central Ave, Brooklyn, NY 11206

SERGEANT RYAN DWYER, Criminal Intelligence Division, One Police Plaza, New York, NY 10038

POLICE OFFICER TREVOR BARTON, PSA 3 Precinct, 25 Central Ave, Brooklyn, NY 11206

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff VERNA SMITH, by her attorneys, Jacobs & Hazan, LLP, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 11, 2017, at approximately 7:30 a.m., plaintiff Verna Smith was lawfully inside of her apartment located at 841 Gates Avenue, Apt. 4C, Brooklyn, New York, when defendants unlawfully and forcibly entered her apartment and unlawfully searched, seized, falsely imprisoned and falsely arrested plaintiff without probable cause or legal justification. Plaintiff was maliciously prosecuted and denied her right to due process and a fair trial until February 22, 2017, when all charges against plaintiff were dismissed and sealed in their entirety. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, denied her rights to a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff VERNA SMITH is and was at all times relevant herein a resident of the State of New York.

3. POLICE OFFICER JOSEPH ARMENIO, Shield No. 5807, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER JOSEPH ARMENIO, Shield No. 5807, is and was at all times relevant herein, assigned to the PSA 3 Precinct.

5. POLICE OFFICER JOSEPH ARMENIO, Shield No. 5807, is being sued in his individual and official capacity.

6. SERGEANT MENA KILADA, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT MENA KILADA is and was at all times relevant herein, assigned to the PSA 3 Precinct.

8. SERGEANT MENA KILADA is being sued in her individual and official capacity.

9. POLICE OFFICER NICHOLAS KOWATCH, Shield 9969, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER NICHOLAS KOWATCH, Shield 9969, is and was at all times relevant herein, assigned to the PSA 3 Precinct.

11. POLICE OFFICER NICHOLAS KOWATCH, Shield 9969, is being sued in his individual and official capacity.

12. SERGEANT RYAN DWYER is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT RYAN DWYER is and was at all times relevant herein, assigned to the Criminal Intelligence Division.

14. SERGEANT RYAN DWYER is being sued in his individual and official capacity.

15. POLICE OFFICER TREVOR BARTON is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. POLICE OFFICER TREVOR BARTON is and was at all times relevant herein, assigned to the PSA 3 Precinct.

17. POLICE OFFICER TREVOR BARTON is being sued in his individual and official capacity.

18. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does #1-10 are being sued in his individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

22. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

23. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

25. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about June 5, 2017.

26. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

28. On February 11, 2017, at approximately 7:30 a.m., while plaintiff was lawfully present inside of her apartment located at 841 Gates Avenue, Apt. 4C, Brooklyn, New York, when the defendant police officers entered the apartment without any legal justification and unlawfully searched the apartment and plaintiff without probable cause or any legal justification.

29. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant police officers have objective factual basis to accuse plaintiff of committing a crime or violating the law.

30. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's person, or from a location that was in plaintiff's possession, custody, or control.

31. Nevertheless, plaintiff was unlawfully handcuffed and transported to the PSA 3 Precinct against her will where she was unlawfully searched, photographed, fingerprinted, and placed in a holding cell.

32. On February 11, 2017 at approximately 10:00 p.m., after many hours in unlawful custody, plaintiff was transported from the PSA 3 Precinct to Kings County Central Booking and placed in a holding cell.

33. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

34. Specifically, defendants provided the District Attorney's Office with the false, misleading and/or incomplete information alleging that plaintiff was in possession, custody or control of controlled substances.

35. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

36. On February 12, 2017 at approximately 10:00 a.m., after more than 24 hours in unlawful custody, plaintiff was arraigned in Kings County Criminal Court, charged with crimes she did not commit and for which defendants had no factual basis to accuse her of committing, and released on her own recognizance.

37. Plaintiff was unlawfully charged with Criminal Possession of a Controlled Substance in the Fifth Degree, Criminal Possession of a Controlled Substance in the Seventh Degree, and Criminal Using Drug Paraphernalia.

38. Thereafter, plaintiff was forced to appear in Court on February 22, 2017 and all charges against plaintiff were dismissed and sealed in their entirety.

39. As a result of the unlawful search of plaintiff's apartment, jewelry valued at approximately \$5,300 and approximately \$1,000 in cash was stolen from plaintiff's apartment.

40. As a result of the unlawful search of plaintiff's apartment, plaintiff sustained significant property damage including a broken door and bedroom dresser.

41. As a result of the false arrest and imprisonment and malicious prosecution of plaintiff, plaintiff missed approximately 3 days of work at FJC Security, causing plaintiff to lose approximately \$300 in wages.

42. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, and false arrest of plaintiff.

43. The unlawful search, false arrest, and false imprisonment, denial of a right to fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of her right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of her right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

54. Defendants lacked probable cause to search plaintiff and her apartment.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Malicious Prosecution

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

59. Defendants commenced and continued a criminal proceeding against plaintiff.

60. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

61. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

62. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Verna Smith. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

68. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Right Denial of Right to Fair Trial/Due Process

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

74. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

75. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

76. In withholding/creating false evidence against plaintiff Fernando Alejandro, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

77. As a result of the foregoing, plaintiff Fernando Alejandro, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

83. Defendants failed to intervene to prevent the unlawful conduct described herein.

84. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

86. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Verna Smith demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 4, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 4, 2018

/s/
STUART E. JACOBS